

TENTATIVE RULINGS FOR August 13, 2026.
Department S29 - Judge Nicole Quintana Winter

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. or 7:00 p.m. on the court day immediately before the hearing.

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your continued appearance is not necessary. However, you must check in. If both sides do not appear, the tentative will simply become the ruling. If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling. If one party wants to argue, Court will hear argument but will not change the tentative. If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court. This procedure is meant to minimize your waiting time in Court.

MAHDIEH SHIRAZI,
v.
CARNIVAL CRUISE LINES; and DOES 1 through 50, inclusive.
CIVSB2535356

Motion: To Dismiss or Stay (forum non conveniens)
Movant: Defendant Carnival Cruise Lines
Respondent: Plaintiff Mahdiah Shirazi (*in pro per*)

PROCEDURAL/FACTUAL BACKGROUND

Currently before the Court is a motion by Defendant Carnival Cruise Lines (“Carnival” or “Defendant”) seeking to dismiss or stay this action due to forum non conveniens.

On December 16, 2025, Plaintiff Mahdiah Shirazi (“Plaintiff”) filed this action against Defendant, alleging that while she was on a Carnival cruise ship, eating dinner, she bit down on a walnut shell that damaged her teeth. (Compl. ¶¶ 7-10.) The complaint pleads four causes of action: (1) negligence; (2) strict products liability; (3) breach of the implied warranty of merchantability; and (4) negligent infliction of emotional distress.

On February 10, 2026, Defendant filed a motion together with a supporting declaration, arguing that pursuant to Code of Civil Procedure section 410.30, subdivision (a), and the doctrine of forum non conveniens, Plaintiff was required to file this lawsuit in the United States District Court for the Southern District Florida based on a mandatory forum selection clause in the Passenger Ticket Contract, contained within the ticket purchased by Plaintiff to board the cruise ship where the underlying incident happened.

On April 15, Plaintiff an opposition and on April 20, Defendant filed a reply.

On April 27, this motion was up for hearing, but Carnival did not appear. As such, the motion was taken off calendar. (Apr. 27, 2026 Min. Order.)

On April 28, Defendant refiled the current motion. On June 15, Plaintiff filed an updated opposition. Defendant filed a reply on June 22, and, on June 24, Plaintiff, filed a sur-reply. The motion was not heard on the noticed date of June 29, and on July 22, Plaintiff filed another sur-reply, this time seeking leave to file such sur-reply as well as filing it.¹

DISCUSSION

I. Statement of the Law

“Forum non conveniens is an equitable doctrine, codified in Code of Civil Procedure section 410.30, under which a trial court has discretion to stay or dismiss a transitory cause of action that it believes may be more appropriately and justly tried elsewhere.” (*Animal Film, LLC v. D.E.J. Productions, Inc.* (2011) 193 Cal.App.4th 466, 471 (“*Animal*”).)

Pursuant to Code of Civil Procedure section 410.30, a court shall stay or dismiss the action in whole or in part when it finds that in the interest of substantial justice an action should be heard in a forum outside this state, and the defendant has not yet made a general appearance.

“In a contract dispute in which the parties’ agreement contains a forum selection clause, a threshold issue in a forum non conveniens motion is whether the forum selection clause is mandatory or permissive.” (*Animal, supra*, 193 Cal.App.4th at 471.) Where there is “no conflicting extrinsic evidence,” the interpretation of a forum selection clause is a legal question that is reviewed de novo. (*Ibid.*)

To be mandatory, a forum selection “‘clause must contain language that clearly designates a forum as the exclusive one.’” (*Korman v. Princess Cruise Lines, Ltd.* (2019) 32 Cal.App.5th 206, 215, quoting *Council of Laborers v. Pittsburg-Des Moines Steel* (9th Cir. 1995) 69 F.3d 1034, 1037.) On the other hand, forum selection clauses where “the parties *submit and consent to* [a] *jurisdiction*” would be permissive because the parties provide for submission to jurisdiction in a particular forum without mandating it. (*Animal, supra*, 193 Cal.App.4th at 471 (emphasis in original).)

If mandatory, forum selection clauses are “given effect without any analysis of convenience; the only question is whether enforcement of the clause would be unreasonable.” (*Ibid.*) To be found “unreasonable,” the burden is on the party seeking to invalidate the clause to show “that the forum selected would be *unavailable* or *unable to accomplish substantial justice*,” and “that the choice of forum have some rational basis in light of the facts underlying the transaction.” (*Cal-State Business Products & Services, Inc. v. Ricoh* (1993) 12 Cal.App.4th 1666, 1679 (emphasis in original) (“*Cal-State*”).) “On the other hand, neither inconvenience nor additional expense in litigating in the selected forum is part of the test of unreasonability.” (*Ibid.*)

Ordinarily, the party seeking to avoid enforcement of a forum selection clause bears the burden of establishing that its enforcement would be unreasonable, unless the claims at issue are based on unwaivable rights created by California statutes. (*Drulias v. 1st Century Bancshares, Inc.* (2018) 30 Cal.App.5th 696, 703.) In that situation, the party seeking to enforce the forum selection clause bears the burden to show litigating the claims in the contractually designated forum will not diminish in any way the substantive rights afforded under California law. (*Ibid.*)

If the forum selection clause is found to be permissive, then the traditional forum non-conveniens analysis applies, where a two-part test is utilized: (1) determining if the alternative forum is a suitable place for trial, and (2) then weighing the private and public interest in retaining

¹ Although leave of Court is usually required to file a sur-reply, this Court has “discretion whether to accept new evidence with the reply papers,” and to consider Plaintiff’s supplemental responses. (*Alliant Ins. Services, Inc. v. Gaddy* (2008) 159 Cal.App.4th 1292, 1308.)

the action in California. (*Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744, 751.) The moving party bears the burden of proof. (*Ibid.*)

“[A] substantial-evidence standard of review applies where a forum has been selected by contract.” (*Cal-State, supra*, 12 Cal.App.4th at 1680.) A trial court’s decision to enforce a forum selection clause is reviewed for abuse of discretion. (*Verdugo v. Alliantgroup, L.P.* (2015) 237 Cal.App.4th 141, 148.)

II. Analysis.

a. Whether The Forum Selection Clause is Mandatory or Permissive.

A forum selection clause “is mandatory if it requires the parties to litigate their disputes exclusively in the designated forum, and it is permissive if it merely requires the parties to submit to jurisdiction in the designated forum.” (*Id.* at 147, fn. 2.)

Here, the clause is mandatory. By his own complaint, Plaintiff was a passenger on Defendant’s cruise ship when the underlying incident happened. (Compl. ¶¶ 7-10.) Defendant presents evidence that by purchasing a ticket for the cruise, Plaintiff agreed to abide by a contract which included the following forum selection clause:

[I]t is agreed by and between the Guest and Carnival that all disputes and matters whatsoever arising under, in connection with or incident to this Contract or the Guest’s cruise, including travel to and from the Vessel, **shall** be litigated, if at all, before the United States District Court for the Southern District of Florida in Miami, or as to those lawsuits to which the Federal Courts of the United States lack subject matter jurisdiction, before a court located in Miami-Dade County, Florida, U.S.A. to the exclusion of the Courts of any other county, state or country.

(R. Diaz Decl. Ex. B ¶14(c) (emphasis added).) By the language of the clause, this forum selection clause is mandatory because it contains language that clearly designates a forum as the exclusive one. (*Korman v. Princess Cruise Lines, Ltd., supra*, 32 Cal.App.5th at 215.) In *Animal, supra*, the Court of Appeal, Second District confirmed that use of the word “shall” mandates use of a particular forum instead of just permissively providing for submission to jurisdiction. (*Animal, supra*, 193 Cal.App.4th at 472.)

b. Whether The Forum Selection Clause is Unreasonable.

As such, the question before the Court becomes whether the forum selection clause is “unreasonable or unfair.” (*Verdugo v. Alliantgroup, L.P., supra*, 237 Cal.App.4th at 147.) As stated by the Court of Appeal, Second District:

[I]f there is a mandatory forum selection clause, the test is simply whether application of the clause is unfair or unreasonable, and the clause is usually given effect. Claims that the previously chosen forum is unfair or inconvenient are generally rejected. [Citation.] A court will usually honor a mandatory forum selection clause without extensive analysis of factors relating to convenience.

(*Berg v. Mtc Electronics Techs. Co.* (1998) 61 Cal.App.4th 349, 358-359 (emphasis in original).) “In the context of forum selection clauses, enforcement is considered unreasonable where ‘the forum selected would be unavailable or unable to accomplish substantial justice’ or there is no ‘rational basis’ for the selected forum.” (*Drulias v. 1st Century Bancshares, Inc., supra*, 30

Cal.App.5th at 707, quoting *CQL Original Products, Inc. v. National Hockey League Players' Assn.* (1995) 39 Cal.App.4th 1347, 1354.)

“[I]n cases with a contractual forum selection clause, the burden of proof is on the plaintiff, the party resisting the motion.” (*Intershop Communications AG v. Superior Court*, *supra*, 104 Cal.App.4th at 198.) Indeed, “[t]he party’s burden on a motion to enforce a mandatory forum selection clause is to demonstrate that the contractually selected forum would be unavailable or unable to accomplish substantial justice or that no rational basis exists for the choice of forum. [Citation.] Neither inconvenience nor the additional expense of litigating in the selected forum is a factor to be considered.” (*Id.* at 199.)

In her multiple oppositions, Plaintiff’s main argument is that “[b]ecause Plaintiff is disabled and has limited financial means, requiring litigation in Florida would create a practical barrier to obtaining justice.” (Jun. 15, 2026 Opp. at 3; *see also* Jun. 24 Sur-Reply.) Such an argument, however, does not make the forum of Florida unreasonable, only that it would be inconvenient, which the Court does not consider when faced with a mandatory forum selection clause, as is the case here.

In her July 22 sur-reply, Plaintiff refers to the United States Supreme Court case *Carnival Cruise Lines v. Shute* (1991) 499 U.S. 585, in which the Supreme Court, in deciding that Carnival could enforce its forum selection clause, emphasized “that forum-selection clauses contained in form passage contracts are subject to judicial scrutiny for fundamental fairness.” (*Id.* at 595.) The Supreme Court, however, found that the clause was valid in part because, as is the same now, Carnival states “its principal place of business in Florida, and many of its cruises depart from and return to Florida ports,” such that it has reasonable ties to the selected form, and that “there is no evidence that petitioner obtained respondents’ accession to the forum clause by fraud or overreaching.” (*Ibid.*)

In her last filed sur-reply, Plaintiff also argues that Defendant did not provide notice of the forum selection clause. As the Court of Appeal, Fourth District has stated, even if a forum selection clause is “contained in an adhesion contract, that clause in an adhesion contract is enforceable even though the defendant did not actually read it [Citation.] as long as the clause provided adequate notice to the defendant that he was agreeing to the jurisdiction cited in the contract.” (*Hunt v. Superior Court* (2000) 81 Cal.App.4th 901, 908 (“*Hunt*”).)

Notice, in this context, however, is whether Plaintiff had notice of the specific jurisdiction. In the context of cruise ships, “a passenger need not have actually read or been aware of the [forum selection] provision to be bound by it, so long as he or she had an opportunity to review the contract before boarding.” (*Schlessinger v. Holland America* (2004) 120 Cal.App.4th 552, 559.) Had she read the contract, Plaintiff would have had notice of the forum. In *Hunt*, the Court of Appeal found that challenging party had no notice that they had to litigate in California because the clause in question recited

[O]nly that the Hunts agree to submit to jurisdiction in the applicable jurisdiction and to waive jury trial. Standing alone, the clause does not identify California as the applicable jurisdiction. Accordingly, unless the documents elsewhere clearly define the term ‘applicable jurisdiction’ as used in the guaranty to mean California, the Hunts’ signatures on the guaranty are not indicative of a valid forum selection clause; it does not give them notice they were consenting to California as the selected forum.

(*Hunt*, *supra*, 81 Cal.App.4th at 908.)

Based on the above analysis, the Court grants Defendant's motion, especially given "neither inconvenience nor additional expense in litigating in the selected forum is part of the test of unreasonability." (*Cal-State, supra*, 12 Cal.App.4th at 1679.) Although the Court can be sympathetic to Plaintiff's plight, "mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.)

In this case, the Court orders that the matter be stayed, pending the outcome in the federal case. Staying the action ensures "fair treatment of California plaintiffs" (*Berg v. Mtc Electronics Techs. Co., supra*, 61 Cal.App.4th at 356), and would allow Plaintiff to resume the case without having to refile it if Plaintiff's federal case gets dismissed without prejudice.

RULING

The Court grants the Defendant's motion and stays this action due to the mandatory forum selection clause in the parties' contract.

Court sets an OSC re: status of case for January 27, 2026. Defendant, as the prevailing party, is ordered to serve formal notice of the Court's final ruling.

Dated: August 13, 2026

Judge Nicole Quintana Winter

CAPERS
v.
JUVENILE DEPENDENCY COURT et al.
CIVSB2434851

Motion: **(1) Motion for Reconsideration**
 (2) Motion to Vacate Judgment
Movant: Petitioner Ma'lenna Capers (in pro per)
Respondent: Respondent Superior Court of California (erroneously sued as San Bernardino
 Juvenile Court)

RELEVANT PROCEDURAL/FACTUAL BACKGROUND

On December 19, 2024, Petitioner Ma'lenna Capers, in pro per, filed a petition for relief from the claim presentation requirement under the Government Claims Act.

On June 13, 2025, the Court denied the petition after finding that Petitioner failed to demonstrate that she presented a claim for damages and/or an application to present a late claim to Respondent within one year from the date her claim accrued.

On June 20, 2025, Petitioner filed a "motion to vacate dismissal and reinstate case," which the Court denied on August 6, 2025. The Court ordered the case dismissed as to all parties.

On August 15, 2025, the Court signed and filed its order of dismissal and judgment in favor of Respondent, and against Petitioner.

On August 21, 2025, Respondent filed a notice of entry of judgment.

On September 2, 2025, Petitioner filed a "motion to reconsider dismissal and reinstate case." Respondent filed an opposition. Petitioner filed a reply (along with a "response to tentative ruling"). On October 17, 2025, the Court denied the motion.

On October 20, 2025, Respondent served a notice of ruling.

Now before the Court is Petitioner's motions to: (1) reconsider dismissal; and (2) vacate the judgment. Both motions were filed on May 11, 2026. Respondent filed a combined opposition. To date, Petitioner has not replied.

DISCUSSION

Motion to Reconsider Dismissal

In the notice, Petitioner states she seeks an order to reconsider the Court's prior dismissal of the case entered on October 17, 2025. Petitioner is incorrect about the date of entry of the dismissal, which was August 15, 2025. She seeks to raise issues about being unable to attend the hearing on October 17, 2025. But as part of her argument and conclusion, Petitioner requests the Court reconsider its prior dismissal of the case.

A motion for reconsideration must: (1) be made within 10 days after service of the notice of entry of the order or ruling; (2) be based on new or different facts, circumstances or law; and (3) be accompanied by a declaration stating what previous "application" was made, the ruling thereon, and what new or different facts, circumstances or law are claimed to exist. (Code Civ. Proc., § 1008, subd. (a).)

A party seeking reconsideration of a prior order based on "new or different facts, circumstances or law" must provide a satisfactory explanation for failing to present the information at the first hearing, i.e., a showing of reasonable diligence. (*California Correctional Peace Officers Ass'n v. Virga* (2010) 181 Cal.App.4th 30, 47, fn. 15.)

As Respondent correctly argues, Petitioner's motion for reconsideration fails because it is brought after entry of the judgment. To the extent Petitioner seeks to set aside the dismissal, once judgment is entered, the court cannot entertain or decide a motion for reconsideration. But the court has discretion to treat it as a motion for new trial. (*Marshall v. Webster* (2020) 54 Cal.App.5th 275, 281; *Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 193; *Ten Eyck v. Industrial Forklifts Co.* (1989) 216 Cal.App.3d 540, 545 [invalid motion for reconsideration did not extend time for appeal].) Because judgment had already been entered before Petitioner filed her motion, Petitioner's motion is untimely to the extent she seeks to set aside the dismissal. There is also no basis to treat this motion as a new trial motion given the time to file a new trial motion has passed. (Code Civ. Proc., § 659.)

To the extent Petitioner's motion is directed to the October 17, 2025, denial of Petitioner's motion for reconsideration, the motion also is untimely, because it was filed more than 10 days after Respondent served the notice of ruling on October 20, 2025. On that basis, the Court denies the motion.

Motion to Vacate Judgment

Petitioner's motion states she seeks to vacate the judgment entered on October 17, 2025, under Code of Civil Procedure sections 473 and 663. Again, the judgment of dismissal was entered on August 15, 2025.

Respondents correctly argue that to the extent Petitioner seeks to vacate the judgment of dismissal under Code of Civil Procedure section 663, the motion is untimely. A motion to vacate judgment must be made within 15 days of service of the written notice of entry of judgment. (Code Civ. Proc., § 663a, subdivision (a)(2).) The 15-day deadline of section 663a, subdivision (a), is jurisdictional and cannot be extended due to mistake, inadvertence, surprise, or excusable neglect. (*Garibotti v. Hinkle* (2015) 243 Cal.App.4th 470, 479.) Here, the motion was served more than 15 days after written notice of entry of judgment on August 21, 2025. Further, by its terms, a section 663 motion to vacate results in the Court entering a new judgment.

To the extent Petitioner seeks relief under Code of Civil Procedure section 473, subdivision (b), Respondent again correctly argues that the motion is untimely. Under section 473, subdivision (b), the motion must be filed within a "reasonable time," not exceeding six months after the judgment was entered. Here, Petitioner's motion to vacate the judgment was required to be filed by February 15, 2026.

Respondent also points out that at the August 6, 2025, hearing on Petitioner's Motion to Vacate Dismissal and Reinstate Case, Petitioner attended the hearing and indicated that she intended to submit on the Court's tentative ruling denying her motion and file an appeal. (Wagner Decl. (filed Sept. 10, 2026) ¶ 2.) Therefore, Petitioner decided to allow her case to be dismissed.

RULING

The Court denies Petitioner Ma'lenna Capers' motion for reconsideration and motion to vacate judgment.

Defendant, as the prevailing party, is ordered to serve formal notice of the Court's ruling.

Dated: August 13, 2026

Judge Nicole Quintana Winter